

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Monique West	Team: Squad #02	CCRB Case #: 201412291	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/22/2014 8:48 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/22/2016	Precinct: 102		
Date/Time CV Reported Tue, 12/09/2014 5:10 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Wed, 12/10/2014 11:17 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Brian Tiernan	5421	933411	102 PCT
2. POM Kenneth Neubauer	26110	947819	102 PCT
3. POM Tommy Choi	20824	936346	102 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Frammosa	13849	951744	102 PCT
2. POM Thomas Connelly	31191	936375	102 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Brian Tiernan	Discourtesy: Sgt. Brian Tiernan spoke rudely to § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . SGT Brian Tiernan	Abuse: Sgt. Brian Tiernan threatened to notify Administration for Children's Services.	B . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On November 22, 2014, at approximately 8:48 p.m., Sgt. Brian Tiernan of the 102nd Precinct investigated the incident leading to the arrests of § 87(2)(b) and § 87(2)(b) at 87 § 87(2)(b) in Queens for § 87(2)(b) (arrest reports encl. D39-44). During their interaction with the officers, Sgt. Tiernan allegedly used several variations of the word “fuck” and “bitch” as he spoke to § 87(2)(b) and her cousin-in-law § 87(2)(b) (**allegation A**). Sgt. Tiernan threatened to contact ACS (**allegation B**) (Civilian Complaint Report encl. B1, CCRB Complaint report encl. B2-3, CCRB statements encl. B4-17). PO Kenneth Neubauer and PO Tommy Choi of the 102nd Precinct responded to the incident § 87(2)(g), § 87(4-b) § 87(2)(g), § 87(4-b)

Mediation, Civil and Criminal Histories

On March 4, 2015, the notice of claim with the City of New York was requested and will be added to the case file upon receipt. As a result of the unresolved criminal case against them, this case was ineligible for mediation. § 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. A8).
- § 87(2)(b) filed one prior complaint with the CCRB § 87(2)(b)
- Sgt. Tiernan has been a member of the NYPD for 11 years, has had nine previous CCRB allegations involving four cases with one substantiated allegation. § 87(2)(g)
- PO Neubauer has been a member of the NYPD for six years, has had six previous CCRB allegations involving four cases with no substantiated allegations. § 87(2)(g)
- This is the first CCRB allegation against PO Choi during his ten year tenure with the NYPD (encl. A7).

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- **Entry:** § 87(2)(b) alleged that officers entered his building and then his apartment without permission. § 87(2)(b) stated that § 87(2)(b) gave the officers permission to enter the building and she gave them permission to enter their apartment. § 87(2)(g)

Explanation of Subject Officer Identification

§ 87(2)(b) provided a video of the officers at her home. She stated during her interview that she showed Capt. Danielle Raia of the 102nd Precinct the video and pointed out the officer who spoke rudely to her and § 87(2)(b) and threatened to contact ACS. Capt. Raia identified the officer as Sgt. Brian Tiernan. § 87(2)(b) forwarded the video to the CCRB and included a handwritten letter identifying Sgt. Tiernan as the officer at the end of the video

wearing a navy jacket. Sgt. Tiernan confirmed during his interview that he was that officer. Sgt. Tiernan also stated that he did most of the talking and admitted to having the conversation regarding ACS with § 87(2)(b) § 87(2)(g)

Recommendations

Allegation A- Discourtesy: Sgt. Brian Tiernan spoke rudely to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that while Sgt. Tiernan spoke to her he stated, “Stand next to your fucking husband. I want you to speak the fucking truth.” Later in the conversation he called her a “fucking lying bitch.” She alleged that when § 87(2)(b) came downstairs, Sgt. Tiernan said, “Who the fuck is she?” and again called her a “fucking lying bitch.” She alleged that he then turned to § 87(2)(b) and said, “Who the fuck are you?” (CCRB statement encl. B8-9) § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Tiernan said, § 87(2)(b) you are a fucking liar bitch. What the fuck you doing here?” He then stated, “For your fucking liaredness, I’ll take your fucking kids away from you.” He alleged that Sgt. Tiernan said, “We’re going to fucking lock you up now.” He stated that when § 87(2)(b) came downstairs he said, “Who the fuck is this? Where the fuck she came from?” He then told an officer, “Arrest these fucking bitches” (CCRB statement encl. B16-17). § 87(2)(b) refused to provide a statement to the CCRB.

§ 87(2)(b) the daughter of § 87(2)(b) and § 87(2)(b) alleged that she heard an officer say, “You are a fucking bitch.” She did not allege hearing any further profanities. § 87(2)(b) the son of § 87(2)(b) and § 87(2)(b) alleged hearing an officer say, “Tell me the fucking truth” and “Who the fuck is this?” He did not recall any other comments that were made. Neither § 87(2)(b) nor § 87(2)(b) knew who made the comments or who the comments were made to because they heard them through a closed door (CCRB statements encl. B4).

Sgt. Tiernan denied making any of the alleged comments or using the words, “fuck,” “fucking,” “bitch,” or “bitches” in any context and none of the officers interviewed heard Sgt. Tiernan use those words in any context (CCRB statements encl. C1-26).

§ 87(2)(g)

It is therefore recommended that allegation A be closed as **unsubstantiated**.

Allegation B- Abuse of Authority: Sgt. Brian Tiernan threatened to notify Administration for Children’s Services.

§ 87(2)(b) alleged that Sgt. Tiernan stated that he would take her two youngest children to foster care after stating that he was going to arrest her and her husband (Civilian Complaint Report encl. B1, CCRB phone statement encl. B2-3, CCRB statement encl. B8-9) § 87(2)(b) § 87(2)(b) stated that an officer threatened to take them “away to a shelter.” § 87(2)(b) stated that an officer threatened to take their children away (CCRB phone statement encl. B4).

Sgt. Tiernan stated that he explained to § 87(2)(b) and § 87(2)(b) that he needed to leave the children with someone or he would have to notify ACS to have someone watch the children (CCRB statement encl. C4-5). PO Frammosa corroborated this. PO Connelly, PO Neubauer and PO Choi did not recall if Sgt. Tiernan made the alleged statement or stated that he would contact ACS.

Officers are required to notify the Administration for Children's Services to obtain care for a child under the age of 18 when their parent or guardian has been arrested, even if the child is left with a relative or friend. Patrol Guide Procedure 215-01 (encl. A1).

§ 87(2)(g)

It is therefore recommended that allegation B be closed as **exonerated**.

§ 87(2)(g), § 87(4-b)

[REDACTED]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date